

ble of Spain was then expected for a Treaty of Peace; and the Navy might be brought to the *Gravn* under pretence of the Service in the *Low Countries*. And *Raleigh* further said, That many more were hanged for Words, than for Deeds. And before *Raleigh's* Treason was discovered, it was reported in Spain, that *Don Raleigh* and *Don Cobham* should cut the King of England's Throat.

I say not, that we have any Proofs, that these of the Powder-Plot were acquainted with *Raleigh*, or *Raleigh* with them: but as before was spoken of the Jesuits and Priests, so they all were joined in the Ends, like *Sampson's* Foxes in the Tails, howsoever sever'd in their Heads.

The Conclusion shall be from the admirable Clemency and Moderation of the King, in that howsoever these Traitors have exceeded all others their Predecessors in Mischief, and so *Crescente Malitia, crescere debuit & Pena*; yet neither will the King exceed the usual Punishment of Law, nor invent any new Torture or Torment for them; but is graciously pleased to afford them as well an ordinary Course of Trial, as an ordinary Punishment, much inferior to their Offence. And surely worthy of Observation is the Punishment by Law provided and appointed for High-Treason, which we call *Crimen læsæ Majestatis*. For first, after a Traitor hath had his just Trial, and is convicted and attainted, he shall have his Judgement to be drawn to the place of Execution from his Prison, as being not worthy any more to tread upon the Face of the Earth whereof he was made: Also for that he hath been retrograde to Nature, therefore is he drawn backward at a Horse-Tail. And whereas God hath made the Head of Man the highest and most supreme Part, as being his chief Grace and Ornament, *Pronaque cum spectant Animalia cætera terram, Os homini sublime dedit*; he must be drawn with his Head declining downward, and lying so near the Ground as may be, being thought unfit to take benefit of the common Air. For which Cause also he shall be strangled, being hanged up by the Neck between Heaven and Earth, as deemed unworthy of both, or either; as likewise, that the Eyes of Men may behold, and their Hearts condemn him. Then is he to be cut down alive, and to have his Privy Parts cut off and burnt before his Face, as being unworthily begotten, and unfit to leave any Generation after him. His Bowels and inlay'd Parts taken out and burnt, who inwardly had conceived and harboured in his heart such horrible Treason. After, to have his Head cut off, which had imagined the Mischief. And lastly, his Body to be quartered, and the Quarters set up in some high and eminent Place, to the View and Detestation of Men, and to become a Prey for the Fowls of the Air.

And this is a Reward due to Traitors, whose Hearts be hardened: For that it is Physic of State and Government, to let out corrupt Blood from the Heart. But, *Pœnitentia vera nunquam, sera sed pœnitentia sera raro vera*: True Repentance is indeed never too late; but late Repentance is seldom found true: Which yet I pray the merciful Lord to grant unto them, that having a Sense of their Offences, they may make a true and sincere Confession both for their Souls Health, and for the Good and Safety of the King and this State. And for the rest that are not yet apprehended, my Prayer to God is, *Ut aut convertantur ne pereant, aut confundantur ne noceant*; that either they may be converted, to the End they perish not, or else confounded, that they hurt not.

After this by the Direction of Master Attorney-General, were their several Examinations (subscribed by themselves) shewed particularly unto them, and acknowledged by them to be their own, and true, wherein every one had confessed the Treason. Then did Master Attorney desire, That albeit that which had been already done and confessed at the Bar, might be all-sufficient for the Declaration and Justification of the Course of Justice then held, especially seeing we have *Reos confitentes*. The Traitors own voluntary Confessions at the Bar; yet for further Satisfaction to so great a Presence and Audience, and their better Memory of the Carriage of these Treasons, the voluntary and free Confessions of all the said several Traitors in writing subscribed with their own proper Hands, and acknowledged at the Bar, by themselves to be true, were openly and distinctly read; By which, amongst other things, it appeared that *Bates* was absolved for what he undertook concerning the Powder-Treason, and being therein warranted by the Jesuits. Also it appeared, that *Hammond* the Jesuit, after that he knew the Powder-Treason was discovered, and that these Traitors had been in actual Rebellion, confessed them, and gave them Absolution: And this was on Thursday the 7th of November.

Here also was Mention made by Master Attorney of the Confessions of *Watson* and *Clarke*, Seminary Priests, upon their Apprehension; who affirmed, that there was some Treason intended by the Jesuits, and then in Hand; as might appear.

1. By their continual negotiating at that Time with Spain, which they assured themselves tended to nothing but a preparation for a foreign Commotion.

2. By their collecting and gathering together such great Sums of Money, as then they had done, therewith to levy an Army when Time should serve.

3. For that sundry of the Jesuits had been tampering with Catholics, as well to dissuade them from Acceptance of the King at his first coming, saying, That they ought rather to Die, than to admit of any Heritick (as they continually termed his Majesty) to the Crown; and that they might not, under pain of Excommunication, accept of any but a Catholic for their Sovereign; as also to dissuade Catholics from their Loyalty after the State was settled.

Lastly, In that they had both bought up store of great Horses throughout the Country, and conveyed Powder and Shot, and Artillery secretly to their Friends; wishing them not to stir, but keep themselves quiet until they heard from them.

After the reading of their several Examinations, Confessions, and voluntary Declaration as well of themselves, as of some of their dead Confederates, they were all by the Verdict of the Jury found guilty of the Treasons contained in their Indictment.

And then being severally asked, What they could say, wherefore Judgment of Death should not be pronounced against them; there was not one of these (except *Rookwood*) who would make any continued Speech, either in Defence or Extenuation of the Fact.

*Thomas Winter* only desired, that he might be hanged both for his Brother and himself.

*Guy Fawkes* being asked, Why he pleaded Not Guilty, having nothing to say for his Excuse: answered, That he had so done in respect of certain Conferences mention'd in the Indictment, which he said that he knew not of: Which were answered to have been set down according to Course of Law, as necessarily pre-supposed before the Resolution of such a Design.

*Keys* said, That his Estate and Fortunes were desperate, and as good now as at another time, and for this Cause rather than for another.

*Bates* craved Mercy.

*Robert Winter*, Mercy.

*John Grant* was a good while mute; yet after, submissively said, He was guilty of a Conspiracy intended, but never effected.

But *Ambrose Rookwood* first excused his denial of the Indictment, for that he had rather lose his Life than give it. Then did he acknowledge his Offence to be so heinous, that he justly deserved the Indignation of the King, and of the Lords, and the Hatred of the whole Commonwealth; yet could he not despair of Mercy at the Hands of a Prince, so abounding in Grace and Mercy: And the rather, because his Offence, tho' it were incapable of any Excuse, yet not altogether incapable of some Extenuation, in that he had been neither Author nor Actor, but only persuaded and drawn in by *Catesby*, whom he loved above any worldly Man: And that he had concealed it not for any Malice to the Person of the King, or to the State, or for any ambitious Respect of his own, but only drawn with the tender Respect, and the faithful and dear Affection he bare to Mr. *Catesby* his Friend, whom he esteem'd dearer than any thing else in the World. And this Mercy he desired not for any fear of the Image of Death, but for grief that so shameful a Death should leave so perpetual a blemish and blot unto all Ages, upon his Name and Blood. But howsoever that this was his first Offence, yet he humbly submitted himself to the Mercy of the King, and prayed that the King would herein imitate God, who sometimes doth punish corporally, non mortaliter, corporally, yet not mortally.

Then was related how that on the Friday immediately before this Arraignment, *Robert Winter* having found opportunity to have Conference with *Fawkes* in the Tower, in regard of the nearness of their Lodgings, should say to *Fawkes*, as *Robert Winter* and *Fawkes* confessed, That he and *Catesby* had Sons, and that Boys would be Men, and that he hoped they would Revenge the Cause; nay, that God would raise up Children to *Abraham* out of Stones: Also that they were sorry, that nobody did set forth a Defence or Apology of their Action, but yet they would maintain the Cause at their Deaths.

Here also was reported *Robert Winter's* Dream, which he had before the blasting with Powder in *Littleton's* House, and which he himself confessed and first notified, viz. That he thought he saw Steeples stand awry, and within those Churches strange and unknown Faces. And after, when the foresaid Blast had the Day following scorched divers of the Confederates, and much disfigured the Faces and Countenances of *Grant*, *Rookwood*, and others; then did *Winter* call to Mind his Dream, and to his Remembrance thought, that the Faces of his Associates so scorched, resembled those which he had seen in his Dream.

Then was Sir *Everard Digby* arraigned, and after his Indictment was read; wherein he was charged, not only to have been acquainted with the Powder-Treason, and concealed it, and taken the double Oath of Secrecy and Constancy therein, but likewise to have been an Actor in this Conspiracy; and lastly to have exposed, and openly shewed himself in the Rebellion in the Country amongst the rest of the Traitors. All which after he had attentively heard and marked, knowing that he had confessed it, and the strength and Evidence of the Proofs against him, and convicted with the Testimony of his own Conscience, shewed his Disposition to confess the principal Part of the said Indictment, and so began to enter into a Discourse. But being advertised that he must first plead to the Indictment directly, either Guilty, or not Guilty; and that afterwards he should be licensed to speak his Pleasure; he forthwith confessed the Treason contained in the Indictment, and so fell into a Speech, whereof there were two Parts, viz. Motives, and Petitions. The first Motive which drew him into this Action, was not Ambition or Discontentment of his Estate, neither Malice to any in Parliament, but the Friendship and Love he bare to *Catesby*, which prevailed so much, and was so powerful with him, as that for his sake he was ever contented and ready to hazard himself and his Estate. The next Motive, was the Cause of Religion, which alone, seeing (as he said) it lay at the stake, he entered into Resolution to neglect in that behalf, his Estate, his Life, his Name, his Memory, his Posterity, and all worldly and earthly Felicity whatsoever; tho' he did utterly extirpate, and extinguish all other hopes for the restoring of the Catholick Religion in England. His third Motive was, that Promises were broken with the Catholics. And lastly, That they generally feared harder Laws from this Parliament against Recusants, as that Recusants Wives, and Women should be liable to the Mulf as well as their Husbands and Men. And further, that it was supposed, that it should be made a *Premunire*, only to be a Catholick.

His Petitions were, That since his Offence was confined and contained within himself, that the Punishment also of the same might extend only to himself, and not to be transferred either to his Wife, Children, Sisters, or others: And therefore for his Wife he humbly craved, that she might enjoy her Jointure; his Son the benefit of an Entail made long before any thought of this Action; his Sisters, their just and due Portions, which were in his Hands; his Creditors their rightful Debts, which that he might more justly set down under his Hand, he requested that before his Death, his Man (who was better acquainted both with the Men, and the Particulars than himself) might be licensed to come unto him. Then prayed he Pardon of the King and Lords for his Guilt. And lastly he entreated to be beheaded; desiring all Men to forgive him, and that his Death might satisfy them for his Trespas.

To this Speech forthwith answered Sir *Edward Coke* Attorney-General, but in respect of the time (for it grew now dark) very briefly:

1. For his Friendship with *Catesby*, that it was mere Folly and wicked Conspiracy.

2. His Religion, Error, and Heresy.

3. His Promises, idle and vain Presumptions, as also his Fears, false Alarms,